

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
STEVEN APONTE,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER RAYMON MARTINEZ
(shield # 7415),

Defendants.
-----X

Index No.

Purchased 1-4-21

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

Dated: January 4, 2021
Bronx, NY

Yours, etc.,



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X

STEVEN APONTE,

Plaintiff,

Index No. _____

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER RAYMON MARTINEZ
(shield # 7415),

Defendants.

-----X

Plaintiff STEVEN APONTE, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff resided in the State of New York.
2. That at all times hereinafter mentioned, POLICE OFFICER RAYMON MARTINEZ (shield # 7415)(hereinafter referred to as "P.O. MARTINEZ") was employed by the NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD").
3. That at all times hereinafter mentioned, members of the NYPD (hereinafter referred to as "P.O. DOE 1-2") involved in the arrest of Plaintiff were employed by the NYPD.
4. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK (hereinafter referred to as "CITY"), is a municipal corporation organized and existing under the laws of the

State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

5. That at all times hereinafter mentioned, the NYPD is an agency created and maintained by the above municipal government.

PROCEDURAL POSTURE

6. On September 8, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

7. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

8. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

STATEMENT OF FACTS

9. On or about November 21, 2017, Angel Piantini (hereinafter referred to as "PIANTINI") leased a black 2017 Toyota Camry from Jorge Peralta (hereinafter referred to as "PERALTA").

10. On or about November 21, 2017, at approximately 10:00AM, in the vicinity of 367 Brook Avenue, Bronx, NY, Plaintiff was a passenger in said Camry with PIANTINI, Derrick Benitez (hereinafter referred to as "BENITEZ") and Alex Thomas (hereinafter referred to as "THOMAS"). At that approximate time, PIANTINI parked the Camry in front of his home and, immediately thereafter, exited the Camry.

11. Shortly after PIANTINI exited the Camry, THOMAS entered the driver's seat of the Camry and drove away from PIANTINI's home, with Plaintiff and BENITEZ still inside of the Camry.

12. On or about November 21, 2017, at approximately 11:00AM, in the vicinity of Fordham Road and University Avenue, Bronx, NY, the aforementioned Camry was stopped by P.O. MARTINEZ and P.O. DOE 1-2.

13. THOMAS had not violated any New York Vehicle and Traffic Rule or Regulation and there was no legal basis to stop the Camry.

14. After P.O. MARTINEZ and P.O. DOE 1-2 stopped the Camry, they approached the Camry and directed the occupants to exit the Camry. Next, P.O. MARTINEZ informed THOMAS that the Camry was reported stolen.

15. In response, THOMAS explained to P.O. MARTINEZ and P.O. DOE 1-2 that he, BENITEZ and Plaintiff had permission and authority to be inside of and operate the vehicle.

16. Within minutes, both PIANTINI and PERALTA (car owner) came to the location where P.O. MARTINEZ had stopped the Camry and informed P.O. MARTINEZ that Plaintiff and the other vehicle occupants had permission and authority to be inside of and operate the Camry.

17. Despite learning that Plaintiff and the other occupants had permission and authority to be inside of and operate the Camry, P.O. MARTINEZ handcuffed and arrested Plaintiff, BENITEZ and THOMAS.

18. Plaintiff had not engaged in any criminal or unlawful behavior on November 21, 2017.

19. At the time of Plaintiff's arrest, P.O. MARTINEZ and P.O. DOE 1-2 knew that Plaintiff had not committed a crime.

20. Nevertheless, Plaintiff was arrested and transported to the 40th precinct.

21. At the 40th precinct, both PIANTINI and PERALTA again informed P.O. MARTINEZ and P.O. DOE 1-2 that Plaintiff and the other occupants in the Camry had permission and authority to be inside of and operate the vehicle.

22. P.O. MARTINEZ and P.O. DOE 1-2 persisted and continued with the arrest of Plaintiff.

23. While at the precinct, Plaintiff was searched and forced to remain inside of a precinct holding cell.

24. After being held at the precinct for several hours, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.

25. On or about November 22, 2017, Plaintiff was arraigned in Bronx County Criminal Court on docket 2017BX044920, charging him with Grand Larceny, Criminal Possession of Stolen Property and Unauthorized Use of a Vehicle.

26. At the conclusion of his arraignment, Plaintiff was released from custody and ordered to return to court.

27. On and between November 22, 2017 (arraignment date) and April 3, 2018 (dismissal date), Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Bronx District Attorney.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

28. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

29. Plaintiff sues all Defendants in their capacities.

30. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution were all carried out without a warrant or probable cause.

31. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

32. Prior to November 21, 2017, CITY and NYPD developed and maintained policies or

customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

33. It was the policy and/or custom of the NYPD and CITY to ignore exculpatory evidence before, during and after an arrest is made. Herein, prior to arresting Plaintiff, the NYPD and CITY had direct evidence of Plaintiff's innocence from PIANTINI and PERALTA (car owner), whom both came to the arrest location and informed P.O. MARTINEZ and P.O. DOE 1-2 that Plaintiff and the other occupants in the Camry had permission and authority to be inside of and operate the Camry. Additionally, while Plaintiff was at the precinct, PIANTINI and PERALTA (car owner) again explained to P.O. MARTINEZ and P.O. DOE 1-2 that Plaintiff and the other occupants in the Camry had permission and authority to be inside of and operate the Camry. Despite this fact, P.O. MARTINEZ and P.O. DOE 1-2 proceeded with the arrest processing and prosecution of Plaintiff.

34. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

35. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SECOND 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

36. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

37. In arresting Plaintiff, the Defendants acted with malice.

38. The Defendants lacked probable cause to arrest Plaintiff.

39. P.O. MARTINEZ signed a criminal complaint under penalty of perjury when P.O. MARTINEZ knew, or should have known, that said complaint contained falsehoods and inaccurate information.

40. P.O. MARTINEZ deliberately failed to disclose to the prosecution that P.O. MARTINEZ and P.O. DOE 1-2 had information exculpating Plaintiff—including statements from the Camry's owner, PERALTA, establishing that Plaintiff had permission and authority to be in PERALTA's vehicle.

41. On April 3, 2018, the matter was terminated in Plaintiff's favor when all charges were dismissed and sealed.

42. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

43. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS FOR A THIRD CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF
PLAINTIFF'S CONSTITUTIONAL RIGHTS**

44. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

45. Defendant P.O. MARTINEZ caused Plaintiff to apprehend and/or fear unfriendly contact by approaching Plaintiff and violently handcuffing Plaintiff.

46. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

47. Defendant P.O. MARTINEZ assaulted Plaintiff in violation of Plaintiff's civil rights.

48. Due to the Defendants' assault on Plaintiff, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND
SUPERVISION**

49. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

50. Prior to and on or about November 21, 2017, Defendant CITY knew or should have known P.O. MARTINEZ to be unruly and to verbally threaten and to harass other human beings.

51. Defendant CITY negligently hired and trained P.O. MARTINEZ and negligently failed to supervise or discharge him from his employ, thereby causing and contributing to the above-stated incident.

52. Plaintiff was caused to sustain serious injuries, caused to shock and mental anguish; that

these injuries and their effects will be permanent.

53. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

54. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

55. The acts of CITY and P.O. MARTINEZ complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

56. Plaintiff was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

57. As a result of the foregoing, Plaintiff seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

58. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

59. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and /or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by Defendant P.O. MARTINEZ and P.O. DOE 1-2.

60. As a result of the foregoing, Defendant CITY, individually and and/or vicariously by and through their agents, servants, and/or employees, including P.O. MARTINEZ and P.O. DOE 1-2,

displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

61. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents servants, and/or employees, including P.O. MARTINEZ and P.O. DOE 1-2, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

62. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

63. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

64. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

65. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

66. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

67. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

68. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

69. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

70. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

71. Plaintiff therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: January 4, 2021
Bronx, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
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(212) 939-7251

TO:

JAMES E. JOHNSON
New York City Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER RAYMON MARTINEZ
(shield # 7415)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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STEVEN APONTE,

Index No. _____

Plaintiff

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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
January 4, 2021



ELLIOT S. KAY